

INDIVIDUAL OPINION BY M. NAGAOKA.

[*Translation.*]

The view that the expression "law", as used in Part II of the Constitution of Danzig, means a law passed in accordance with Article 43 of that Constitution is not convincing; for it is impossible that a law of the kind contemplated in this part of the Constitution should always go into full detail. That moreover is why it is generally recognized that a penal law may leave details to be provided for by means of administrative regulations.

It is also the fact that a penal law may—and that penal laws do in fact frequently—leave the details of its application to the courts. Accordingly, in order to ascertain whether the two decrees of August 29th, 1935, issued as decrees having force of law, are inconsistent with the Danzig Constitution, it must be ascertained whether these legislative decrees leave too much latitude to the courts, allowing them so absolute a discretion in rendering judgment that they may even ignore the provisions of the Constitution. It is difficult to see how the answer to this question can be in the affirmative. The two legislative decrees in question oblige the courts, when rendering judgment in pursuance of them, to fulfil two conditions which considerably restrict the measure of the discretion which they may exercise. Persons endeavouring to circumvent the provisions of a penal law will try to take advantage of any loopholes or imperfections which it may offer. If however the law were applied by analogy under the conditions laid down by the legislative decrees, such persons would realize beforehand that their actions were liable to punishment.

On the other hand, the fact must not be lost sight of that the Constitution of the Free City of Danzig was drawn up in agreement with the High Commissioner of the League of Nations and can only be altered with the authorization of the League. It follows that the Free City has no right to delete or amend any provision of the Constitution simply of its own free will. The Constitution in force in Danzig must therefore be the Constitution as approved by the League of Nations. This is an international obligation which the Senate of the Free City cannot evade; and the Danzig courts make it their duty strictly to respect the provisions of the Constitution which override all other laws.

Hitherto the League of Nations has considered that the measures provided by Danzig legislation afford the necessary guarantee that the Constitution will be respected. If the League came to the conclusion that these measures were not sufficient, it would be for the League to call upon the Free City, in virtue of the Treaty of Versailles, to give such new guarantees as the League considered indispensable in order to enable it to fulfil the mission entrusted to it.

Having regard to the foregoing, I am of opinion that the legislative decrees in question of August 29th, 1935, are consistent with the Constitution or, more precisely, that they in no way affect the provisions of that instrument, although they confer on the courts powers wider than those which they previously possessed; on the other hand, I am of opinion that, when a judgment is rendered in application of the terms of these legislative decrees, there may be a question whether that judgment is or is not in conformity with the Constitution.

(Signed) H. NAGAOKA.